Bolivia:
Democratization in Spite of Interference

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Introduction

Throughout history, our understanding of democracy has developed from its beginnings in Athens to its renewal in the revolutions of the late 18th and early 19th centuries, and to its global expansion beginning in the 1970s. From 1977 to 2017, the global percentage of democracies has increased from 24% to 57% according to the Polity IV Project Database (Polity5 Project 2018). However, defining democracy has become increasingly complex in that time; following the third wave of democratization, the rise of regimes with both democratic and authoritarian characteristics has led to new definitions and categorizations of democracy. Larry Diamond refers to these regimes as "hybrid" regimes that appear democratic but function as authoritarian regimes. Under a hybrid regime, often a single party dominates the political landscape with no meaningful opposition because of its restriction on a fair political arena (Diamond 2003, 24).

On the contrary, liberal democracies possess political systems defined not only by their elections but also rule of law, separation of powers, and protections of certain freedoms (Zakaria 1997, 22-24). Philippe C. Schmitter and Terry Lynn Karl outline nine similar conditions necessary for what Zakaria would consider a liberal democracy. These conditions include: ability for elected officials to exercise their powers without the interference of unelected actors, the right for all citizens to vote in competitive, fair, and frequent elections, and protecting freedoms of assembly, speech, and press (Schmitter and Karl 1991, 93). When categorizing regimes on the democracy-authoritarianism spectrum, scholars look at the presence and extent of democratic traits to determine the regime type.

Thesis

Since its initial transition to democracy in the 1980s, The Plurinational State of Bolivia has seen several regimes and administrations through a wide range of the democracy spectrum. Since its independence in 1809 from Spanish colonial rule, Bolivia has seen various coups and periods of great political instability because of intervention from foreign and unelected actors. Despite the instability of the Bolivian political system, the constitutional documents of the state have always maintained democratic principles with their three branches of government, modeled after the US system. However, over Bolivian history, new regimes, especially illiberal regimes, ignored or chartered new constitutions to legitimize their "democratic" authority ("Constitutional History of Bolivia" n.d.). The significant constitutional changes from regime to regime has meant that the quality of democracy in Bolivia has always been in flux.

This research will assess the current quality of democracy in Bolivia, and whether Bolivian democracy possesses the qualities of a liberal democracy. It will identify the democratic and authoritarian characteristics of the current Bolivian regime, as well as the contributing historical factors that produced the current state of democracy, to define Bolivia on Diamond's categories of regimes. This research holds that Bolivia is an electoral democracy with strong indications of becoming a liberal democracy in the future. On one hand, Bolivia exhibits numerous characteristics of a liberal democracy, including elections in which every citizen can vote and some protection of freedoms of assembly, speech, and press. On the other hand, Bolivia has historically lacked the ability for elected officials to exercise their powers without interference from foreign and unelected actors, and the adherence to constitutional limits of power on the executive and judiciary branches.

Bolivia's struggle for independence was the first of many Latin American wars of independence; however, it took 16 years to actualize in an independent Bolivia. Economic decline characterized the first half century of the new republic. The legacy of colonialism weighed heavily on Bolivia as it had to reestablish its economic relationships with the global community and redraw colonial borders. Territorial disputes over new post-colonial borders with Chile and Peru, as well as instability in trade and resource agreements, led to many coups and counter coups. These culminated in the economic decline of Bolivia under military government administrations until the 1870s (Bastías 2013). New resource investments brought more economic success for Bolivia, and in the 1880s, a new era of civilian government, under a two party system, began. The struggle between the new Liberal and Conservative parties over economic issues at the turn of the 20th century led to the collapse of the Conservative Party, marking a liberal period in Bolivia. During this period of stability, Bolivia resolved many of its border disputes and financed major railroad construction. However, during a period of economic change, in 1920 the Conservative Party staged a successful coup, leading to a party fracture that destabilized the political system yet again. Amidst economic issues stemming from the Great Depression, Bolivia provoked the Chaco War, a territorial dispute with Paraguay, which led to another era of military rule (McFarren and Arnade n.d.).

The history of Bolivia illustrates that the nature of its democracy is constantly in flux, subject to coups and interference, yet it continues to restore its democratic practices. In analyzing the quality of democracy in Bolivia, the remainder of this research will compare the current political system in Bolivia to the characteristics of democracy outlined by scholars of comparative political regimes, and categorize it according to Diamond's scale of democratic and authoritarian regimes.

Elections

The right to vote in free and fair elections is the quintessential condition of democracy. And while voting is not the only condition required for a state to be a liberal democracy, the way a state conducts its elections is indicative of that state's quality of democracy. Bolivia's political system, as outlined in its 2009 constitution, contains an electoral branch of government composed of electoral judges, electoral notaries, polling place juries, and its Electoral Tribunals. The Plurinational Electoral Body (OEP) is the primary body responsible for Bolivia's elections, functioning separately, but cooperatively, from the other branches of government to guarantee "the complementarity of direct and participatory, representative and community democracies" (International Foundation for Electoral Systems 2019).

This democratic ideal was challenged in the 2019 presidential election when accusations of voter fraud sparked outrage. Early results of the election suggested a runoff between Evo Morales, seeking his 3rd term in office, and Carlos Mesa, the main opposition candidate, but an updated vote count showed Morales winning with an outright victory. The irregularities and claims of election fraud lead to mass protests and counter protests, coupled with police violence leaving up to 30 people dead. In response to the protests and violence, and after losing support of the police and armed forces, Morales resigned as well as several other officials, leaving Jeanine Áñez Chavez to assume the presidency. Both the presidential and the legislative votes of that year were declared invalid, and the legislature approved a new election to be held in 2020 (Freedom House 2020).

While claims of fraud and distrust in the electoral process characterized the 2019 elections, the 2020 elections were considered free and fair. The date of the 2020 elections was postponed twice due to COVID-19, but despite the delay, the elections were successful in

reestablishing the validity of the Bolivian political system; several independent bodies deemed the election as credible and fair, and the competing parties accepted the results. Polls showed that Luis Arce, the MAS candidate, won without the need for a runoff, as well as MAS winning 75 out of the 130 seats in the legislature (Freedom House 2023).

In a crucial period for Bolivian democracy, Bolivia demonstrated not only the ability to host free and fair elections, but also the ability to recover from contested elections. The results of the 2019 election could have easily marked the start of an authoritarian turn in Bolivia, like in Bolivian history prior. The success of the 2020 elections confirms that the current Bolivian regime is one that upholds the democratic electoral process, with competitive fair elections whose results are accepted by all parties. The recovery of electoral democracy in Bolivia indicates that it falls into the more democratic and free labels of Diamond's categories of democracy, likely as an electoral democracy.

Freedoms of Expression

In order for elections to have meaningful results however, there must also be protections for freedoms of speech, press, and assembly. In matters relating to freedoms of expression, Bolivia falls short of the liberal democracy model. While Bolivia scores high on freedoms of religion and education, and the right to privacy, Freedom House gives Bolivia a 2/4 for free and independent media (Freedom House 2023). Both right and left wing administrations have had hostile relationships with the media. In 2019 and 2020, there were numerous instances of attacks against journalists, with politicians openly threatening the press. In addition, the right leaning interim government adopted provisions that threatened free speech criticizing the government under the guise of COVID-19 management (HRW 2020).

In addition to Bolivia's strained freedoms of speech and press, Bolivia has an equally strained relationship with the freedoms of protesters. In the 2019 election protests, police and military violence lead to massacres of protesters, without accountability for the officers involved. Áñez issued a decree the following November giving the military discretion to use force against protesters without accountability for abuses (Morgenfeld, Leandro, and Mariana Aparicio Ramírez 2021). Bolivia has consistently seen the use of military and police to suppress dissent and protests, particularly with its indigenous population, including under the Morales administration（Cortés, Jiménez, Barella, Nicté, Guzmán, Claure, and Galassi 2019). The violence against protesters coupled with the limitations on free press and speech distinguish Bolivia from a true liberal democracy;however, Bolivia maintains most freedoms of expression associated with democracy.

Separations of Power and Corruption

Hybrid or illiberal regimes typically have unbalanced separations of power, and corruption within the government, both issues Bolivia has regularly had. More specifically the judicial branch has been used as a political tool for the executive, used to reinforce the administration's goals, including in undemocratic ways. The Morales, Áñez, and Arce administrations prosecuted political adversaries on various charges ranging from drug trafficking to terrorism, some of which were unsubstantiated but powerful in tailoring the Bolivian political landscape for their interests (Morgenfeld, Leandro, and Ramírez 2021). Both Morales and Áñez and their administrations faced arrests following the end of their presidencies, reinforcing an undemocratic precedent for changes in administration (Freedom House 2023).

Under the Morales administration, the separation and balance between powers was especially weakened. Specifically, when seeking his 3rd term in office, he used the supreme

court to override a referendum in which voters decided Morales could not run for a 3rd term. The court argued that term limits were in fact unconstitutional, allowing Morales to run for a 3rd term. This decision coupled with the irregularities in vote counts lead to the mass protests against Morales's victory in 2019 (Cortés, Jiménez, Barella, Nicté, Guzmán, Claure, and Galassi 2019). In Bolivia, the judicial branch has bolstered the power of the executive, and this practice can lead to the hyper-presidentialism seen in illiberal regimes; however, for now Bolivia still maintains a separation of powers that is consistent with liberal democracies.

Stability and Foreign Interference

In addition to the challenges faced within, Bolivia's democracy also faces threats from foreign and unelected actors. One of the largest sources of foreign interference comes from the US and NGOs aligned with the US, mostly involving elections and regime changes. The website Behind Back Doors revealed that the US under the Trump administration, as well as other actors, laid the groundwork for the claims of election fraud that ultimately left Áñez as interim president. Bolivian politicians backed by the US, EU, and conservative institutions like the Evangelical Church supported the overturning of the election results, legitimizing Áñez's presidency. Many deem the outcome of the 2019 conflict a coup d'etat, as Áñez's succession of the presidency was "unconstitutional" (Morgenfeld, Leandro, and Ramírez 2021).

Interference goes beyond just the political sphere in Bolivia. The unelected actors involved in the 2019 election "coup" utilized the military and police, media, and church to create the conditions necessary for a conservative takeover of the executive. THe military was one of the most important tools in the "coup", as it was military power that forced Morales to decline the presidency and eventually flee the country. International media from the US and other allies spread the claims of election fraud and vote count irregularities, and afterwards legitimized

Áñez's presidency. Evangelical and Catholic Churches in Bolivia also welcomed Áñez as a return to a more religiously faithful government, similar to churches in Brazil after Bolsonaro's rise to power (Morgenfeld, Leandro, and Ramírez 2021).

Bolivia's possession of valuable natural resources has led to many challenges from foreign and unelected actors, threatening the stability of their democracy. Foreign interest in their resources enforces a "resource curse" onto Bolivia, as the Bolivian interest to use their natural resources to reduce the poverty within Bolivia directly conflicts with capitalist interests who need access to lithium to produce technology (O'Neil 2021, 186). The results of the 2019 election illustrate how damaging that conflict can be to Bolivian democracy, however Bolivia has still recovered their democratic institutions, following the successful 2020 elections, and hopefully in future elections as well.

Findings and Conclusion

Despite its many challenges and threats, Bolivia's democratization process has been persistent and its current state of democracy can best be described as an 'electoral democracy' (Diamond 2003, 22). Despite the challenges of the 2019 election and the resulting interim presidency, Bolivia recovered the integrity of its electoral institutions, hosting what many outside observers agreed was a free and fair election. Bolivia however has issues with the rights associated with competitive elections, including freedom of media and assembly, suggesting that perhaps its an 'electoral authoritarian' system, a system in which a regime presents elections as if it was a democracy, but those elections have no meaningful impact on the authoritarian nature of the government (Diamond 2003, 24). Additionally Bolivia struggles with the balance of power between branches, and interference from non-state actors, as illustrated in the aftermath of both

Morales and Anez's presidencies. However, while Bolivia has issues with freedoms of expression and balances of power, the degree of severity is not consistent with an electoral authoritarian system, but rather an electoral democracy. Outside observers also agree, Freedom House gives Bolivia a 27/40 in Political Rights and a 39/60 on Civil Liberties, meeting the threshold for an electoral democracy.

Bolivia's democracy is one that has always been in flux. The last 5 years in Bolivia have demonstrated that, as the country went through a highly contested election, right wing takeover of the presidency, and a return to democratic elections. The ability to recover from such an undemocratic period demonstrates the progress of Bolivian democracy, and the foundations necessary for a true liberal democracy. The persistence of democratic institutions in Bolivia also indicates that as competing interests try to destabilize Bolivia for access to its natural resources, Bolivia can maintain its democracy. The separate branch of government dedicated to elections proves to serve its purpose as an independent body, free from political influence from the other branches, maintaining the integrity of Bolivian elections.

For the foreseeable future it appears that Bolivia will stay as an electoral democracy. While there is the foundation necessary for a liberal democracy, Bolivia faces consistent challenges from foreign actors and from tumultuous internal relationships. Efforts from the US, Brazil, and organizations like the OAS and Lima Group, pose many challenges to the efforts of Arce and MAS to use Bolivia's resources to eliminate poverty within Bolivia. As Diego von Vacano notes, under Arce, Bolivia sees a path to "stability and prosperity", backed by international organizations to prevent the rise of authoritarianism once again (Vacano 2020). Should an event like the 2019 elections happen again and an authoritarian rises to power in

Bolivia, there is hope and precedent that Bolivia can recover its democratic institutions, maintaining its status as an electoral democracy.

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